

NY.5 Forms & Documents Index

Every document you will meet, named as the agency names it — and the things New York never asks you for.

Before you use this document

This is a process reference, not legal advice. New York adopts one Uniform Code for every parcel in the state outside New York City and then lets your permit office be one of three governments: your town, village or city; your county; or the Department of State. The code itself never lapses, so the question that dominates most states in this series — will anyone inspect this house? — has a statutory answer here. What does vary: the fee, the local law's exemption list, the electrical inspection agency your office has approved, and the frost, snow and wind numbers it has written into Table R301.2. Confirm every item with the office that will actually handle your parcel before you rely on it. Form numbers were read from the agencies' own current forms and rules in September 2026. Where no form number is published, this document says so rather than inventing one.

WITH THE APPLICATION

What goes in before the permit issues

Document	What it is	Source
Form CE-200 Certificate of Attestation of Exemption	Your affidavit under GML § 125 that you have “not engaged an employer or any employees.” Applied for online as a homeowner ; a NY.gov Business account is required; job-specific — one per building permit. Print, sign, submit with the application.	businessexpress.ny.gov
Form C-105.2 and DB-120.1	The alternative door: carrier-issued certificates of workers' compensation and of disability and Paid Family Leave coverage, sent by the carrier to the permit office. The State Insurance Fund's version of the first is U-26.3 ; self-insurers use SI-12 and DB-155. “ACORD forms are not acceptable.” Also what you collect from every trade you hire.	Your carrier
Statement of special inspections	Required “where applicable” in the application. Names the electrical inspection agency your office has approved, and any other special inspector.	19 NYCRR § 1203.3(a)(2)(iv)
Written statement of Energy Code compliance	Part of the construction documents: which path (prescriptive with the R408 package, R405 performance, or R406 ERI) and the values. Software output from a compliance tool is the usual form; the rule does not prescribe one.	19 NYCRR § 1203.3(a)(3)(vii)

What goes in before the permit issues

Document	What it is	Source
Stamped construction documents	Above 1,500 sq ft gross, drawings sealed and signed by a New York-licensed architect or engineer, showing the registration expiration date and, for a firm, its Certificate of Authorization number.	19 NYCRR § 1203.3(a)(3)(ix)
Site plan on a boundary survey	Drawn to scale, “drawn in accordance with an accurate boundary survey,” with distances to lot lines, street and finished grades, and flood hazard areas.	19 NYCRR § 1203.3(a)(3)(viii)
Appendix 75-A septic design	Prepared by or under a design professional and submitted to the county health department or DOH district office for approval. An alternative system needs prior approval and a post-construction certification from the design professional.	10 NYCRR § 75.5(b), (c)
APA permit application or DEP approval	Only inside the Adirondack Park (single-family dwelling in a resource management area, or near forest preserve or a state highway) or the NYC watershed (any new subsurface system). NY.4.	Exec. Law § 809; 10 NYCRR § 128-3.8

DURING CONSTRUCTION AND AFTER

What is created while you build, and what you keep

Document	What it is	Source
The permit itself	Carries a specific expiration date; must be “visibly displayed at the worksite”; one set of stamped approved documents stays on site. No state form number — each office prints its own.	19 NYCRR § 1203.3(a)(4)–(8)
Electrical rough-in and final certificates	Issued by the approved agency. The final certificate is the “final report of special inspections” the office must hold before the CO. Deliver it to the office.	19 NYCRR § 1203.3(d)(2)(ii)
Air-leakage test report	The tester's written blower-door result, “provided to the building official.” A CO precondition. Limit 3.0 ACH in Zones 4-5, 2.5 in Zone 6.	2025 ECCCNY [NY] R402.5.1.2; 19 NYCRR § 1203.3(d)(2)(iv)
Energy certificate (posted)	Permanent, at the furnace or utility room: R-values, U-factors, test results, equipment efficiencies, the code edition and the compliance path.	2025 ECCCNY R401.3
Water well completion report	Filed with DEC by the registered driller; “the water well driller shall provide a copy of such completion report to the water well owner.” Get the copy — it is the well's only record.	ECL § 15-1525(3)

What is created while you build, and what you keep

Document	What it is	Source
Solid-fuel certificate of compliance	Separate permit, inspection and certificate for any wood stove, chimney or flue before it is operated .	2025 RCNYS [NY] R115
Certificate of occupancy	The only lawful permission to occupy. Carries the permit number, address and tax map number, use classification and any special conditions. A temporary CO is available before completion, for a specified period, once the house is safe to occupy with alarms operational and egress complete.	19 NYCRR § 1203.3(d)(1), (3), (4)
Part 1205 petition	Appeal of a code official's order, determination or inaction, or a variance from the code — on a DOS-prescribed form with a fee, decided in 60 days. Start at dos.ny.gov/code/variances .	19 NYCRR § 1205.4

THE LOCAL DOCUMENTS — WRITE IN WHAT YOURS CALLS THEM

Each permit office prints its own paperwork under its own names, and there is no statewide vocabulary for it. These are the ones that exist nearly everywhere.

What my office calls each document

	Item	Date	Notes
☐	Building permit application — and whether a homeowner version exists: Called _____ Homeowner form? _____		
☐	Zoning or site plan approval , if separate: Called _____ Issued by _____		
☐	Driveway permit : Called _____ Road authority _____		
☐	Floodplain development permit , if in a mapped hazard area (including shaded X): Called _____ Administrator _____		
☐	Local electrical or plumbing license , if the municipality or county issues one: Called _____ Issued by _____		

WHAT MAY NEED NO PERMIT — ONLY IF YOUR OFFICE SAYS SO

Part 1203 lets a permit office exempt eight categories. It does not require it to, and a town may demand a permit for a 100 sq ft shed. Where the Department of State is the office, the same eight are exempt by rule (§ 1202.3(b)). The ones that touch a house:

The optional exemptions — 19 NYCRR § 1203.3(a)(1)

What	The rule's wording
Accessory sheds	One-story detached structures accessory to a one- or two-family dwelling, “used for tool and storage sheds, playhouses, or similar uses, provided the gross floor area does not exceed 144 square feet. ”
Window awnings	On a one- or two-family dwelling.
Finish work	“Painting, wallpapering, tiling, carpeting, or other similar finish work.”
Portable appliances	“Installation of listed portable electrical, plumbing, heating, ventilation, or cooling equipment or appliances.”
Like-for-like replacement	Replacement of equipment with the same kind in the same place.
Non-structural repairs	Repairs that do not affect the structural system, the means of egress or the fire protection system.

*The rule closes with the sentence that matters: “An exemption from the requirement to obtain a building permit **shall not be deemed an authorization for work to be performed in violation** of either or both of the Codes.” Ask your office which of the eight its local law adopted; the DOS model local law includes all eight, but a town may have struck any of them.*

WHAT NEW YORK DOES NOT REQUIRE

Worth knowing because owner-builders arriving from other states routinely budget for these. Under the Uniform Code, none of them is required on an ordinary house.

- **Radon-resistant construction.** Appendix BE is “included for informational purposes” — not adopted ([NY] R101.2.1). A municipality cannot simply adopt it; a more-restrictive standard needs Code Council approval (Exec. Law § 379).
- **Residential sprinklers below three stories.** Required in one- and two-family dwellings only at “three stories above grade plane” ([NY] R309.2) — but count a walk-out basement carefully.
- **A state contractor license, or an owner-builder affidavit.** Neither exists. The only state affidavit is the CE-200, and it is about employees.
- **An electrical system at all,** in an owner-occupied one-family dwelling — “unless expressly required by statute, local law, ordinance, or other regulations” ([NY] E3401.2.1). Check the local law.
- **Periodic inspection of your house once you live in it.** No rule may require “regular, periodic inspections of ... owner-occupied one and two-family dwellings” (Exec. Law § 381(1)).

- **A statewide frost depth, snow load or fee.** The first two are the office's to write into Table R301.2; the third is its legislative body's to set by resolution.

Each of these is the Uniform Code's answer. A local law may add to the process — a zoning condition, a local license — but may not add to the construction standard without the Code Council's approval, and DOS keeps the list of standards it has approved.

THE TWO THINGS YOU MAY NOT DO YOURSELF

New York is quiet about owner-performed work — it licenses nothing at state level, so the only limits are local. Two exceptions are written into the code by reference, and both are on the health side.

You may not drill the well, and you may not design the septic system

The well. “Individual water supplies (private wells) **shall be installed by a well driller registered with the Department of Environmental Conservation** and be in compliance with the provisions of Appendix 5-B” ([NY] P2602.1.1). The Environmental Conservation Law itself only regulates “the business of water well drilling” (ECL § 15-1525(1)), which is why some guides say an owner may drill their own; the Uniform Code closes that door for a house. Verify the driller at DEC's registered contractor search, and get your copy of the completion report.

The septic design. “Plans for the design of individual onsite wastewater treatment systems **shall be prepared directly by or under the supervision of a design professional**” (10 NYCRR § 75.5(b)). Installing it is not restricted by the state rule — but the health department inspects before cover, and an alternative system must be built under the design professional's supervision (§ 75.5(c)).

*Everything cited here is free to read, in three places. Statutes are at nysenate.gov/legislation/laws/EXC/381 — swap **EXC** for **GMU**, **WKC**, **EDN**, **GBS**, **LIE** or **LAB** and the number for the section. The rules (19 NYCRR Parts 1202, 1203, 1205, 1219–1229, 1240) are the Department of State's own rule-text PDFs at dos.ny.gov. The 2025 code books are free at codes.iccsafe.org/content/NYSRC2025P1 (residential) and [NYSECC2025P1](https://codes.iccsafe.org/content/NYSECC2025P1) (energy). **One warning:** the code is the regulation plus the book, and Westlaw's NYCRR still showed the 2020 edition for Parts 1219–1229 nine months after the 2025 rule took effect — read the DOS PDFs, not Westlaw. Read September 2026.*